



WTA WOMEN'S ELIGIBILITY POLICY

1. Introduction

- 1.1 This policy, which will come into effect on August 26, 2024 and will replace the WTA Gender Participation Policy from that date, forms part of the WTA Rules, and is binding on and must be complied with by all WTA directors, officers and employees, and by all players, officials, Tournament Support Personnel, Player Support Team Members, other credentialed persons, and other persons who are bound by the WTA Rulebook or otherwise subject to the WTA's jurisdiction.
- 1.2 This policy is intended to facilitate the participation in WTA Tournaments of transgender players and players with differences of sex development who have a female or non-binary gender identity, in a safe and supportive environment that is free from harassment and abuse, and in line with the WTA's policies prohibiting any form of abuse, harassment, discrimination, or violence against any person, regardless of age, race, sex, gender identity, nationality, disability, or religious affiliation, while also seeking to maintain fair and meaningful competition conditions for all players participating in WTA Tournaments. In the event an issue arises in the application of this policy that is not foreseen in this policy, it will be addressed by the WTA in a manner that protects and advances these imperatives.
- 1.3 This policy distinguishes between biological sex and gender identity, and between biological females and biological males, solely to ensure that the policy is clear and has its intended effect. There is no intent to disrespect or question the gender identity or the dignity of any person.
- 1.4 Defined terms used in this policy (indicated by use of initial capital letters) have the meaning given to them in this policy or (if not defined in this policy) the meaning given to them elsewhere in the WTA Rules. Unless otherwise indicated, references in this policy to clauses are to clauses of this policy.
- 1.5 This policy will be subject to periodic review to take account of relevant scientific and other developments.

2. Eligibility to compete in WTA Tournaments

- 2.1 Further to Section I.A of the WTA Rulebook, WTA Tournaments are open to all women tennis players. For purposes of Section I.A, 'women' means:
 - 2.1.1 Biological females (i.e., individuals with ovaries), unless (a) they are undergoing male gender-affirming hormone treatment; or (b) they have undergone male gender-affirming hormone treatment at any time in the previous four years.
 - 2.1.2 Biological males (i.e., individuals who have or previously had testes) with a female gender identity or a non-binary gender identity who (a) have Complete Androgen Insensitivity Syndrome; or (b) have satisfied the Eligibility Conditions set out at clause 3.

[Comment to clauses 2.1.1 and 2.1.2: Individuals with Partial Androgen Insensitivity Syndrome, or with chromosome mosaicism (e.g., Klinefelter's

syndrome), or with ovotesticular dysgenesis, shall be deemed not to fall within clause 2.1.1 or clause 2.1.2, but may seek eligibility to compete in WTA Tournaments pursuant to clause 2.2].

- 2.1.3 Any person who is granted eligibility to compete in WTA Tournaments further to clause 2.2.
- 2.2 Any person who has a female or a non-binary gender identity but does not fall within clause 2.1.1 or clause 2.1.2 may apply to the WTA for eligibility to compete in WTA Tournaments. The WTA Medical Manager shall determine the process to be followed in such a case, including what information or evidence should be provided by the player and/or obtained from experts or other third parties, and whether the player should be required to satisfy the Eligibility Conditions and/or other requirements. The WTA Medical Manager may decide, in their absolute discretion, (a) to grant the player eligibility to compete in WTA Tournaments without any conditions or restrictions; (b) to grant the player conditional eligibility to compete in WTA Tournaments (e.g., conditional on their maintaining the concentration of testosterone in their blood below 2.5 nmol/L for a specified period); or (c) not to grant the player eligibility to compete in WTA Tournaments.
- 3. Eligibility conditions for biological males with a female or non-binary gender identity**
- 3.1 In cases falling within clause 2.1.2, to be eligible to compete in WTA Tournaments, a biological male with a female or non-binary gender identity must demonstrate to the satisfaction of the WTA Medical Manager that they meet each of the following requirements (together, the **Eligibility Conditions**):
- 3.1.1 They must provide a written and signed declaration, in a form satisfactory to the WTA, that their gender identity is female or non-binary, and they must maintain a female or non-binary gender identity for so long as they wish to retain eligibility to compete in WTA Tournaments.
- 3.1.2 Before they compete in their first WTA Tournament, the concentration of testosterone in their blood must have been below 2.5 nmol/L continuously for the previous twenty-four (24) months.
- 3.1.3 The concentration of testosterone in their blood must remain below 2.5 nmol/L at all times thereafter (i.e., whether they are in competition or out of competition) for so long as they wish to retain eligibility to compete in WTA Tournaments.
- 3.2 In cases falling within clause 2.1.3, the Eligibility Conditions may be varied by the WTA Medical Manager further to clause 2.2. In such cases, the references in this policy to the Eligibility Conditions will be to the Eligibility Conditions as varied by the WTA Medical Manager further to clause 2.2.
- 3.3 For the avoidance of doubt:
- 3.3.1 It is the responsibility of the player to decide, in consultation with their own medical team, whether to undergo any medical assessment and/or treatment.
- 3.3.2 The following are not required in order to be eligible to compete in WTA Tournaments: (1) legal recognition of the player's female or non-binary gender identity; or (2) surgical anatomical changes.
- 3.4 The Eligibility Conditions operate without prejudice to the other requirements in the WTA Rulebook that are applicable to all players. In particular, but without limitation, nothing in this policy permits, excuses or justifies non-compliance with any of the requirements of the Tennis Anti-Doping Program, including the requirement to obtain a therapeutic use exemption before

using testosterone-suppressing substances that are included on the WADA Prohibited List (such as spironolactone or GnRH agonists).

[Comment to clause 3.4: See further the WADA Transgender Athletes TUE Physician Guidelines, available at www.wada-ama.org.]

4. Assessing initial satisfaction of and ongoing compliance with the Eligibility Conditions

- 4.1 A person falling within clause 2.1.2 or clause 2.1.3 who wishes to compete in a WTA Tournament (referred to below as 'the applicant') must file the appropriate declaration with the WTA Medical Manager, along with their medical file (including details of any relevant medical treatment they have received) and such other evidence as is required to demonstrate their satisfaction of the Eligibility Conditions, including (where applicable) competent evidence that during the twenty-four month period referenced in clause 3.1.2 the applicant has provided the regular blood samples required by the WTA in accordance with clause 4.6 and that those samples have been analyzed in accordance with clause 4.9 and found to have present in them a concentration of testosterone below 2.5 nmol/L. The applicant is responsible for ensuring that the information provided to the WTA Medical Manager is accurate and complete, and that nothing relevant to the WTA Medical Manager's assessment of the application is withheld. They must also provide the appropriate consents and waivers to enable their physician(s) to disclose to the WTA Medical Manager any further information that the WTA Medical Manager requires in order to assess whether the applicant has satisfied the Eligibility Conditions. All of the required information must be provided to the WTA Medical Manager at least ninety (90) days before the entry deadline for the first WTA Tournament in which the applicant wishes to participate.

[Comment to clause 4.1: Where requested in good time by the applicant, the WTA Medical Manager may in their discretion organize some or all of the collection and analysis of blood samples referenced in clause 4.1, in accordance with their powers under this clause 4, and at the cost of the applicant.]

- 4.2 The WTA Medical Manager will assess the information submitted by or on behalf of the applicant to determine whether the Eligibility Conditions have been met. If they have any concerns about the adequacy of the information provided on any particular point, they must give the applicant a fair opportunity to try to address those concerns before they come to a final decision. The WTA Medical Manager may also seek additional information (including expert opinions) from other sources if they consider it necessary or appropriate to do so.
- 4.3 The WTA Medical Manager will complete their assessment of the application as soon as is reasonably practicable. However, in no circumstance will the WTA or the WTA Medical Manager be liable for any detriment allegedly suffered by the applicant or anyone else as a result of the time taken by the WTA Medical Manager to complete the assessment.
- 4.4 The WTA Medical Manager will send the decision in writing to the applicant.
- 4.4.1 If the WTA Medical Manager decides that the Eligibility Conditions have not (yet) been met, they will explain in writing the reasons for that decision, and what else the applicant needs to do in order to satisfy those conditions.
- 4.4.2 If the WTA Medical Manager decides that the Eligibility Conditions have been met, they will confirm the applicant's eligibility under this policy to compete in WTA Tournaments. That eligibility will be subject in every case to the applicant's continuing satisfaction of the Eligibility Conditions.
- 4.5 Following a grant of eligibility in accordance with clause 4.4.2, the WTA Medical Manager shall use such means as they see fit to monitor the player's continuing compliance with the Eligibility

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Conditions, including (without limitation) by collection and analysis of samples of the player's blood to determine the concentration of testosterone circulating in their system.

- 4.6 The WTA will decide in its absolute discretion both how much testing is required to demonstrate initial compliance with the Eligibility Conditions pursuant to clause 4.1, and how much testing is required to demonstrate continuing compliance with the Eligibility Conditions pursuant to clause 4.5, depending in particular on the method used by the player in question to reduce the concentration of testosterone in their blood to below 2.5 nmol/L. For example, the WTA may decide that an orchidectomized player only requires a limited amount of testing; it may decide that players using daily estrogen medications that have short-term suppressive effects require fairly regular testing; it may decide that players using depot estradiol implants require less testing (due to the longer duration of action of those implants); and it may decide that players using daily oral spironolactone (e.g. Aldactone) or cyproterone acetate (e.g. Androcur) in the form of oral daily capsules need to be tested more frequently than athletes using depot gonadotropin-releasing hormone (GnRH) agonists (e.g. Trelstar) administered every one to three months.
- 4.7 The player agrees (a) to provide whereabouts information and blood samples for use in assessing their initial satisfaction of and/or their continuing compliance with the Eligibility Conditions; (b) that any samples or whereabouts information that they provide under the Tennis Anti-Doping Program or equivalent rules, and/or the results of analysis of such samples and/or any other anti-doping data relating to them, may also be used further to this policy to assess their initial satisfaction of and/or their continuing compliance with the Eligibility Conditions; and (c) to provide any other evidence required by the WTA Medical Manager to assess their initial satisfaction of and/or their continuing compliance with the Eligibility Conditions.
- 4.8 Where a player fails to maintain the concentration of testosterone in their blood below 2.5 nmol/L, either before or after they have been granted eligibility in accordance with clause 4.4.2:
- 4.8.1 unless the player is able to demonstrate to the satisfaction of the WTA Medical Manager that that failure was brief and inadvertent, the player may not compete in any WTA Tournaments unless and until they satisfy the WTA Medical Manager that they have maintained the concentration of testosterone in their blood below 2.5 nmol/L for a new continuous period of twenty-four (24) months; and
- 4.8.2 (where the failure occurs after eligibility has been granted) the WTA Chief Executive Officer may also disqualify the individual results obtained by the player at any WTA Tournament(s) impacted by that failure, with all resulting consequences, including forfeiture of any ranking points, titles and/or other rewards awarded to the player based on those results, unless the WTA Chief Executive Officer determines (in their absolute discretion) that fairness requires otherwise.
- 4.9 Measurements of blood testosterone levels may only be relied upon under this policy (including to determine initial satisfaction of and/or ongoing compliance with the Eligibility Conditions) if they are conducted by means of liquid chromatography coupled with mass spectrometry (e.g. LC-MS/MS or LC-HRMS). The method used must be validated by the laboratory carrying out the test, must also be accredited to the ISO/IEC-17025 or 15189 international standards by a recognized accreditation body that is a full member of the International Laboratory Accreditation Cooperation, and must comply with assay performance criteria, including a measurement uncertainty of not more than 20% (estimated during method validation at testosterone concentration levels close to 2.5 nmol/L). The performance of the method must be monitored

through participation of the performing laboratory in appropriate proficiency testing and/or external quality assessment scheme rounds.

5. Investigations

5.1 In addition to the general power to assess a player's initial satisfaction of and/or continuing compliance with the Eligibility Conditions further to clause 4, the WTA Medical Manager may investigate, at any time:

5.1.1 whether a player who has not filed a declaration under this policy needs to establish their eligibility to compete in WTA Tournaments in accordance with this policy;

5.1.2 whether (because of a subsequent change in circumstances, subsequent learning or experience, or otherwise) it is necessary to require a player who has previously been determined to satisfy the Eligibility Conditions to undergo further assessment to determine whether they did satisfy and/or continue to satisfy those conditions; and/or

5.1.3 any circumstances that indicate potential violation of or non-compliance by a player with this policy;

and in such cases the player in question must cooperate fully and in good faith with that investigation, including by providing blood samples upon request.

5.2 Only the WTA Medical Manager may initiate an investigation further to clause 5.1, and they may only do so in good faith and on reasonable grounds based on information derived from reliable sources, such as (for example) the affected player, the player's national association, results from a routine pre-participation health examination, or data as to blood testosterone levels and/or other data obtained from analysis of samples collected for anti-doping purposes.

5.3 Where necessary to safeguard the fairness of WTA Tournaments, the WTA Chief Executive Officer may provisionally suspend a player from competing in WTA Tournaments pending completion of the investigation and resolution of the matter. In such cases all reasonable endeavours shall be used to complete the investigation as expeditiously as possible. Any such provisional suspension may be appealed by the player in accordance with clause 8.2.3.

6. General obligations

6.1 All players competing or seeking to compete in a WTA Tournament agree, as a condition to such participation:

6.1.1 to comply in full with this policy;

6.1.2 to cooperate promptly and in good faith with the WTA Medical Manager in the discharge of the WTA Medical Manager's responsibilities under this policy, including providing the WTA Medical Manager with all of the information they request to assess/monitor the player's compliance with this policy;

6.1.3 (to the fullest extent permitted and required under applicable laws) to the WTA collecting, processing, disclosing and using that information (including their sensitive personal information) as required to implement and apply this policy effectively;

6.1.4 to follow exclusively the procedures set out in clause 8 to challenge this policy and/or to appeal decisions made under this policy, and not to bring any proceedings in any court or other forum that are inconsistent with that clause; and

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- 6.1.5 to provide written confirmation of their agreement with clauses 6.1.1 to 6.1.4 upon request by the WTA.
- 6.2 A player may revoke the consent that they have previously given in accordance with clause 6.1 at any time, with or without giving reasons, in which case they will no longer be eligible to compete in WTA Tournaments.
- 6.3 Each Tournament Support Personnel, Player Support Team Member (as those terms are defined in the WTA Rulebook) and other credentialed person, and every other person who brings themselves under the authority of the WTA by providing information to the WTA for consideration under this policy:
 - 6.3.1 is bound by and must comply in full with this policy;
 - 6.3.2 must cooperate promptly and in good faith with the WTA Medical Manager in the discharge of their responsibilities under this policy;
 - 6.3.3 must ensure that any information they provide to the WTA Medical Manager for consideration under this policy is accurate and complete; and
 - 6.3.4 must not provide any information in bad faith, to harass, stigmatize or otherwise injure another person, or for any other improper purpose.
- 6.4 The dignity of all players must be respected at all times. Players must not be stigmatized or discriminated against on the grounds of their gender identity. In particular (but without limitation), persecution or campaigns against players simply on the basis that their appearance does not conform to gender stereotypes are unacceptable. Any such conduct will be considered a serious violation of the Code of Conduct (or of any replacement or successor rules).

7. Disciplinary action

- 7.1 The WTA may take disciplinary action in accordance with the Code of Conduct (or any replacement or successor rules) against:
 - 7.1.1 a player falling within clause 2.1.2 or clause 2.1.3 who competes in a WTA Tournament without first satisfying the Eligibility Conditions;
 - 7.1.2 a player falling within clause 2.1.2 or clause 2.1.3 who fails to cooperate fully and in good faith with the efforts of the WTA Medical Manager to assess and/or monitor their compliance with the Eligibility Conditions; and
 - 7.1.3 anyone else who is bound by this policy who violates this policy themselves or who is complicit in a violation of or non-compliance with this policy by another.
- 7.2 In such proceedings:
 - 7.2.1 The validity, legality or enforceability of this policy or of any decision made under this policy may not be challenged. Instead, such challenge may only be brought by way of challenge or appeal in accordance with clause 8.
 - 7.2.2 The consequences that may be imposed, depending on all of the circumstances of the case, include (without limitation):

- 7.2.2.1 a caution, reprimand and/or warning as to future conduct;
- 7.2.2.2 (where applicable) disqualification of individual results obtained by the player at WTA Tournaments, with all resulting consequences, including forfeiture of any ranking points, titles and/or other rewards awarded to the player based on those results;
- 7.2.2.3 a specified period of ineligibility to participate in WTA Tournaments; and/or
- 7.2.2.4 a fine.

8. Dispute resolution

- 8.1 This policy is governed by the laws of the state of New York (excluding New York conflict of law principles). The validity, legality and/or enforceability of this policy may only be challenged (a) by way of ordinary proceedings filed before the CAS; or (b) as part of an appeal to the CAS made pursuant to clause 8.2.
- 8.2 The following decisions (and only the following decisions) made under this policy may be appealed to the CAS by the person specified, in accordance with this clause 8:
 - 8.2.1 a decision that a player is not eligible under this policy to compete in WTA Tournaments may be appealed by that player;
 - 8.2.2 a decision pursuant to clause 2.2 placing conditions other than those set out in clause 3.1 on a player's eligibility to compete in WTA Tournaments may be appealed by that player;
 - 8.2.3 a decision by the WTA to exercise its powers under clause 4.8 may be appealed by the player affected;
 - 8.2.4 a decision to suspend a player provisionally from competition pursuant to clause 5.3 may be appealed by that player; and
 - 8.2.5 a decision to impose consequences on a person pursuant to clause 7 may be appealed by that person.
- 8.3 For the avoidance of doubt, no other player or person may appeal or otherwise challenge (a) a decision by the WTA Medical Manager that a player is eligible (conditionally or otherwise) or ineligible under this policy to compete in WTA Tournaments; or (b) a decision by the WTA to exercise or not to exercise its powers against a player under clause 4.8, or clause 5.3, or clause 7.1.
- 8.4 The CAS will hear and determine a challenge/appeal permitted under this policy in accordance with the CAS Code of Sports-Related Arbitration. Any such challenge or appeal will be conducted in the English language and will be governed by the WTA Rulebook, with the laws of the state of New York applying subsidiarily. In the case of any conflict between the WTA Rulebook and the CAS Code of Sports-Related Arbitration currently in force, the WTA Rulebook will take precedence.
- 8.5 Pending final determination of the challenge/appeal, the provisions of the policy and/or the decision under challenge or appeal will remain in full force and effect unless the CAS orders otherwise.

- 8.6 The decision of the CAS will be final and binding on all parties, and no right of appeal or other challenge will lie from that decision on any ground, except as set out in Chapter 12 of the Swiss Federal Code on Private International Law.

9. Confidentiality

- 9.1 All cases arising under this policy, and in particular all player information provided to the WTA under this policy, and all results of examinations and assessments conducted under this policy, will be maintained in strict confidence at all times. All medical information and data relating to a player will be treated as sensitive personal information and the WTA will ensure that it is processed as such in accordance with applicable data protection and privacy laws. Such information will not be used for any purpose not contemplated in this policy, and will not be disclosed to any third party save (a) as is strictly necessary for the effective application and enforcement of this policy; or (b) as is required by applicable law.
- 9.2 The WTA will not comment publicly on a pending case except in response to public comments attributed to the player or the player's representatives. Once a case has been decided, the WTA will consult with the player or the player's representatives on whether and if so how to communicate publicly about the player's eligibility status.

10. Support

- 10.1 Any player seeking to understand and comply with the requirements of this policy applicable to them make seek assistance from the WTA's Performance Health Department.

11. Costs

- 11.1 Unless otherwise stated, the costs incurred by the WTA in assessing and monitoring compliance with this policy will be borne by the WTA. All other costs, including the costs of any medical assessment, examination, treatment, reporting, and other costs involved in complying with this policy, will be borne by the player in question.

12. Limitation of liability

- 12.1 In no circumstances will the WTA or any of the WTA's directors, officers, employees, agents, representatives, or other persons involved in the administration of this policy be liable in any way in relation to acts done or omitted to be done in good faith in connection with the administration of this policy.